

UNITED STATES DISTRICT COURT

DISTRICT OF SOUTH DAKOTA

SOUTHERN DIVISION

UNITED STATES OF AMERICA,

Plaintiff,

vs.

DIXON ENRIQUE JARQUIN-RIVERA,

Defendant.

4:25-CR-40041-RAL

FINAL JURY INSTRUCTIONS

FINAL INSTRUCTION NO. 1

Members of the jury, the instructions I gave you at the beginning of the trial and during the trial remain in effect. I now give you some additional instructions. The instructions I am about to give you now are in writing and will be available to you in the jury room.

You must, of course, continue to follow the instructions I gave you earlier, as well as those I give you now. You must not single out some instructions and ignore others, because all are important.

All instructions, whenever given and whether in writing or not, must be followed.

FINAL INSTRUCTION NO. 2

It is your duty to find from the evidence what the facts are. You will then apply the law, as I give it to you, to those facts. You must follow my instructions on the law, even if you thought the law was different or should be different.

Do not allow sympathy or prejudice to influence you. The law demands of you a just verdict, unaffected by anything except the evidence, your common sense, and the law as I give it to you.

FINAL INSTRUCTION NO. 3

I have mentioned the word “evidence.” The “evidence” in this case consists of the testimony of witnesses, the documents and other things received as exhibits, and the facts that have been stipulated—that is, formally agreed to by the parties.

You may use reason and common sense to draw deductions or conclusions from facts which have been established by the evidence in the case.

Certain things are not evidence. I shall list those things again for you now:

1. Statements, arguments, questions, and comments by lawyers representing the parties in the case are not evidence.
2. Objections are not evidence. Lawyers have a right to object when they believe something is improper. You should not be influenced by the objection. If I sustained an objection to a question, you must ignore the question and must not try to guess what the answer might have been.
3. Testimony that I struck from the record, or told you to disregard, is not evidence and must not be considered.
4. Anything you saw or heard about this case outside the courtroom is not evidence.

When you were instructed that evidence was received for a limited purpose, you must follow that instruction. You are not charged with determining whether the defendant should or should not be in the United States. Certain testimony and immigration documents were received for the limited purpose of determining if the defendant knowingly made a false statement when attempting to acquire firearms on September 25, 2024, and December 30, 2023.

Some of you may have heard the terms “direct evidence” and “circumstantial evidence.” You are instructed that you should not be concerned with those terms. The law makes no distinction between direct and circumstantial evidence. You should give all evidence the weight and value you believe it is entitled to receive.

FINAL INSTRUCTION NO. 4

In deciding what the facts are, you may have to decide what testimony you believe and what testimony you do not believe. You may believe all of what a witness said, or only part of it, or none of it.

In deciding what testimony of any witness to believe, consider the witness's intelligence, the opportunity the witness had to have seen or heard the things testified about, the witness's memory, any motives that witness may have for testifying a certain way, the manner of the witness while testifying, whether that witness said something different at an earlier time, the general reasonableness of the testimony, and the extent to which the testimony is consistent with any evidence that you believe.

In deciding whether or not to believe a witness, keep in mind that people sometimes hear or see things differently and sometimes forget things. You need to consider therefore whether a contradiction is an innocent misrecollection or lapse of memory or an intentional falsehood, and that may depend on whether it has to do with an important fact or only a small detail.

FINAL INSTRUCTION NO. 5

The Second Superseding Indictment in this case charges the defendant with false statements during the purchase of a firearm and false statements to a licensed firearms dealer. The defendant has pleaded not guilty to these charges.

The Second Superseding Indictment is simply the document that formally charges the defendant with the crimes for which he is on trial. The Second Superseding Indictment is not evidence of anything. At the beginning of the trial, I instructed you that you must presume the defendant to be innocent. Thus, the defendant began the trial with a clean slate, with no evidence against him. The presumption of innocence alone is sufficient to find the defendant not guilty. This presumption can be overcome only if the United States proved during the trial, beyond a reasonable doubt, each element of the crimes charged.

Please remember that only the defendant, not anyone else, is on trial here, and that the defendant is on trial only for the crimes charged, not for anything else.

There is no burden upon the defendant to prove that he is innocent. Instead, the burden of proof remains on the United States throughout the trial. The fact that the defendant did not testify cannot be used in any way, or even discussed, in determining whether the United States has proved its case beyond a reasonable doubt.

FINAL INSTRUCTION NO. 6

The crime of false statement during the purchase of a firearm, as charged in Count I of the Second Superseding Indictment, has the following five essential elements, which are:

One, on or about September 25, 2024, in the District of South Dakota, the defendant Dixon Enrique Jarquin-Rivera knowingly made a statement that he was a citizen of the United States and not a citizen of another country to a federally licensed firearms dealer;

Two, the statement was false;

Three, the defendant knew the statement was untrue when he made it;

Four, the statement was intended or was likely to deceive a federally licensed firearms dealer; and

Five, the alleged false statement was material; that is, the false statement had a natural tendency to influence or was capable of influencing an unlawful sale of a firearm.

If all of these elements have been proved beyond a reasonable doubt, then you must find the defendant guilty of the crime charged. Otherwise, you must find the defendant not guilty of this crime.

FINAL INSTRUCTION NO. 7

The crime of making a false statement during a firearm purchase, as charged in the Count II of the Second Superseding Indictment, has the following four essential elements, which are:

***One*, on or about September 25, 2024, in the District of South Dakota, the defendant Dixon Enrique Jarquin-Rivera knowingly made a statement that he was a citizen of the United States and not a citizen of another country in an ATF Form 4473;**

***Two*, the defendant made the statement to Fleet Farm, a federally licensed firearms dealer;**

***Three*, the statement was false; and**

***Four*, the defendant knew the statement was untrue when he made the statement.**

If all of these elements have been proved beyond a reasonable doubt, then you must find the defendant guilty of the crime charged. Otherwise, you must find the defendant not guilty of this crime.

FINAL INSTRUCTION NO. 8

The crime of false statement during the purchase of a firearm, as charged in Count III of the Second Superseding Indictment, has the following five essential elements, which are:

One, on or about December 30, 2023, in the District of South Dakota, the defendant Dixon Enrique Jarquin-Rivera knowingly made a statement that he was a citizen of the United States and not a citizen of another country to a federally licensed firearms dealer;

Two, the statement was false;

Three, the defendant knew the statement was untrue when he made it;

Four, the statement was intended or was likely to deceive a federally licensed firearms dealer; and

Five, the alleged false statement was material; that is, the false statement had a natural tendency to influence or was capable of influencing an unlawful sale of a firearm.

If all of these elements have been proved beyond a reasonable doubt, then you must find the defendant guilty of the crime charged. Otherwise, you must find the defendant not guilty of this crime.

FINAL INSTRUCTION NO. 9

The crime of making a false statement during a firearm purchase, as charged in the Count IV of the Second Superseding Indictment, has the following four essential elements, which are:

***One*, on or about December 30, 2023, in the District of South Dakota, the defendant Dixon Enrique Jarquin-Rivera knowingly made a statement that he was a citizen of the United States and not a citizen of another country in an ATF Form 4473;**

***Two*, the defendant made the statement to Gary's Gun Shop, a federally licensed firearms dealer;**

***Three*, the statement was false; and**

***Four*, the defendant knew the statement was untrue when he made the statement.**

If all of these elements have been proved beyond a reasonable doubt, then you must find the defendant guilty of the crime charged. Otherwise, you must find the defendant not guilty of this crime.

FINAL INSTRUCTION NO. 10

“Knowledge” is an element of the offenses charged in this case and must be proven beyond a reasonable doubt. The government is not required to prove the defendant knew his acts or omissions were unlawful. An act is done “knowingly” if the defendant realizes what he is doing and does not act through ignorance, mistake, or accident. You may consider the evidence of the defendant’s words, acts, or omissions, along with all other evidence, in deciding whether the defendant acted knowingly. You may, but are not required to, infer that a person intends the natural and probable consequences of acts knowingly done or knowingly omitted.

The United States is not required to prove that the defendant knew that Gary’s Gun Shop or Fleet Farm were federally licensed firearms dealers. The United States must prove beyond a reasonable doubt that the defendant knew he was making a false statement on the ATF 4473 forms at issue. A statement is false if it was untrue when it was made.

FINAL INSTRUCTION NO. 11

You have heard testimony from persons described as experts. Persons who, by knowledge, skill, training, education or experience, have become expert in some field may state their opinions on matters in that field and may also state the reasons for their opinion.

Expert testimony should be considered just like any other testimony. You may accept or reject it, and give it as much weight as you think it deserves, considering the witness's education and experience, the soundness of the reasons given for the opinion, the acceptability of the methods used, and all the other evidence in the case.

FINAL INSTRUCTION NO. 12

Reasonable doubt is doubt based upon reason and common sense, and not doubt based on speculation. A reasonable doubt may arise from careful and impartial consideration of all the evidence, or from a lack of evidence. Proof beyond a reasonable doubt is proof of such a convincing character that a reasonable person, after careful consideration, would not hesitate to rely and act upon that proof in life's most important decisions. Proof beyond a reasonable doubt is proof that leaves you firmly convinced of the defendant's guilt. Proof beyond a reasonable doubt does not mean proof beyond all possible doubt.

FINAL INSTRUCTION NO. 13

In conducting your deliberations and returning your verdict, there are certain rules you must follow. I shall list those rules for you now.

First, when you go to the jury room, you must select one of your members as your foreperson. That person will preside over your discussions and speak for you here in court.

Second, it is your duty, as jurors, to discuss this case with one another in the jury room. You should try to reach agreement if you can do so without violence to individual judgment, because a verdict—whether guilty or not guilty—must be unanimous. Each of you must make your own conscientious decision, but only after you have considered all the evidence, discussed it fully with your fellow jurors, and listened to the views of your fellow jurors. Do not be afraid to change your opinions if the discussion persuades you that you should. But do not come to a decision simply because other jurors think it is right, or simply to reach a verdict.

Third, if the defendant is found guilty, the sentence to be imposed is my responsibility. You may not consider punishment in any way in deciding whether the United States has proved its case beyond a reasonable doubt.

Fourth, if you need to communicate with me during your deliberations, you may send a note to me through the marshal or court security officer, signed by one or more jurors. I will respond as soon as possible either in writing or orally in open court. Remember that you should not tell anyone—including me—how your votes stand numerically.

Fifth, during your deliberations, you must not communicate with or provide any information to anyone other than by note to me by any means about this case. You may not use any electronic device or media, such as a smart phone, or computer; the internet, any internet service, or any text or instant messaging service; or any internet chat room, blog, or website such as Facebook, Snapchat, LinkedIn, Instagram, YouTube, TikTok, X (formerly known as Twitter), or Truth Social, to communicate to anyone information about this case or to conduct any research about this case until I accept your verdict.

Sixth, your verdict must be based solely on the evidence and on the law which I have given to you in my instructions. Nothing I have said or done is intended to suggest what your verdict should be—that is entirely for you to decide.

Finally, the verdict form is simply the written notice of the decision that you reach in this case. You will take this form to the jury room, and when each of you has agreed on the verdict, your foreperson will fill in the form, sign and date it, and advise the marshal or court security officer that you are ready to return to the courtroom.